

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12

NNABUGWU CHINEDU ANDREW,
AVERS LOGISTICS LTD,
CJ DELUZ NIGERIA LTD.

Complainants,

vs.

RESPONDENTS' BRIEF

ALLA SOLOVYEVA,
RAYA BAKHIREV.

Respondents.

I. COMPLAINTS' CLAIMS ARE BARRED BY THE STATUTE OF
LIMITATIONS & THE DOCTRINE OF LACHES-ASSERTED AS
AFFIRMATIVE DEFENSES

As an initial matter, it is respectfully being submitted that Raya Bakhirev should be dismissed from this case at the outset — and a finding made that the filing and maintaining a case as against her was frivolous — as her role as an accountant/bookkeeper has no relationship to any allegation of a violation of the Shipping Act. Complainants abandoned any theory of liability as to Ms. Bakhirev, which is evidenced by the fact that Ms. Bakhirev is not mentioned in anywhere in the Complainants' 194 proposed findings of fact, except that she was employed by MTL as an accountant/bookkeeper.

The above-captioned matter is governed by a three-year statute of limitations. The claim typically accrues “when a defendant commits an act that injures a plaintiff’s business.” *Maher Terminals, LLC v. The Port Authority of New York and New Jersey*, 32 S.R.R. 1185, 1191 (FMC 2013).

On April 18, 2017, more than three years before this complaint was filed, MTL wrote to the Complainants: “Dear Chinedu, per management, we will not be able to load containers until payment for storages is received. In this case, we do have available funds on your account. We need your confirmation to apply payment...” (Respondent’s Exhibit #14). Incidentally, this communication also undercuts Complainants’ central claim that MTL applied funds without any consent by Complainants.

On the same day, Complainants were advised of MTL’s storage policy. (Respondent’s Exhibit #16).

It is submitted that when Complainants were advised that their vehicles would not be loaded on April 18, 2017, until payment for storage is received, that “injured” their business for the purposes of the accrual of the statute of limitations. It is true that not all of the 17 subject vehicles began to accumulate storage outside of the three-year statute of limitations. Respondent’s first proposed finding of fact lists 12 of the 17 subject vehicles as having been in storage for more than three years before the above-captioned matter was filed. However, as to the remaining five vehicles that entered storage just a couple of months within the three-year statute of limitations, it is submitted that Complainants knew that they would not be able to load or ship the vehicles unless outstanding storage/freight charges would be satisfied.

Additionally, even though Mr. Nussbaum tries to portray his client as an innocent victim who did not know almost anything about shipping, his client, Mr. Chinedu, by his own admission, is a “professional clearing agent.” (Respondent’s Exhibit #15). Therefore, at least as of April 18, 2017, Complainants were aware that their business was adversely impacted because they had vehicles in storage with outstanding balance, and they knew that going forward their business

would continue to be negatively impacted if they did not comply, which they did not, with such policy and would not be able to load and ship their vehicles.

“The equitable defense of laches is designed to promote diligence and prevent enforcement of stale claims by those who have slumbered on their rights.” *Breen v. Tucker*, 821 F.Supp.2d 375, 380 (D.D.C. 2011). “Laches applies where there is (1) lack of diligence by the party against whom the defense is asserted, and (2) prejudice to the party asserting the defense.” *Id.* “Two kinds of prejudice support a laches defense. Plaintiff’s delay in filing suit may have resulted in a loss of evidence or witnesses supporting defendant’s position or the defendant may have changed its position in a manner that would not have occurred but for plaintiff’s delay.” *Id.* at 381.

As noted above, on April 18, 2017, more than three years before this complaint was filed, MTL wrote to the Complainants: “Dear Chinedu, per management, we will not be able to load containers until payment for storages is received. In this case, we do have available funds on your account. We need your confirmation to apply payment...” (Respondent’s Exhibit #14).

As also noted above, 12 of the 17 subject vehicles as having been in storage for more than three years before the above-captioned matter was filed.

As noted below, specifically as to Respondent’s Exhibit #17, it appears that Complainants were waiting until MTL disposes of their vehicles as the Complainant, Mr. Chinedu, stated: “Hi. I have a big case. Alla sold my 17 cars and...” It is submitted that this satisfies the prejudice element of the doctrine of laches, namely that had the Complainants not waited for MTL to dispose some of the subject vehicles due to abandonment and filed the matter earlier, perhaps these issues could have been resolved, but instead, as described below, not only did the Complainants delay, but they refused to pick up some of their vehicles that were delivered to Complainants.

II. COMPLAINANTS ABANDONED THE SUBJECT VEHICLES

On May 5, 2017, MTL wrote to Complainants: “Chinedu, This is our storage policy, 30 days free if you ship with us. I need to get your confirmation ASAP, or we are not loading on Monday.” (Respondent’s Exhibit #5, pages 1-2).

Respondent’s proposed findings of fact (§§ 3-38) list the invoices that were provided to the Complainants for the subject vehicles, which were never satisfied.

Respondent’s Exhibit #1 confirms (via the enclosed delivery confirmation from DHL) that Complainants received copies of all invoices for the outstanding charges on April 4, 2018. (See also pages 12-14 of such exhibit, and Respondent’s exhibits 11 and 12).

Throughout his brief, including on page 40, Mr. Nussbaum says the same baseless thing over and over again in hopes that it will resonate with the Court, namely that MTL “willfully cut in half, dismantled, and destroyed two automobiles.” Mr. Nussbaum does not cite to any evidence where anything even remotely to this happened.

The reference in the invoice #83486 (Respondent’s Exhibit #2, page 4) to “cutting and dismantling” refers to something else, and Complainants are aware of this because they know the condition of their own vehicles that they purchased. Respondents’ proposed findings of fact (40 to 42) explain this.

One of the subject vehicles that appears in this invoice has a Vin# ending in 3906, and looking at the physical condition of this vehicle, there are dangling parts noted, such as the front bumper.

(Respondent’s Exhibit #6, page 55), and the vehicle cannot be shipped in this manner.

Complainants refused to pick up their vehicles (Respondents' Exhibit #7), and they never went to even check the conditions of the vehicles, so there is no basis to say that the automobiles were cut in half.

It appears that the Complainants intentionally did not pick up their vehicles because if they had, they could not file this case with the Federal Maritime Commission. It is submitted that people who act in good faith, without any ulterior motive, would have behaved differently. For example, Complainants should have been happy to receive their vehicles even though they still owed around \$70,000 in charges. Why did they not even attempt to go to the port to look at the vehicles?

An additional piece of evidence appears in Respondent's Exhibit #17. Although the actual Facebook post has been deleted by Complainants, MTL provided an email which contained a phrase in the post, which has not been produced by Complainants: "Hi. I have a big case. Alla sold my 17 cars and..." It is submitted that it appears as though Complainants were counting on these vehicles to be disposed so that they can file this case, and such is consistent with their behavior, as mentioned above, in refusing to pick up the vehicles.

III. ISSUES AS TO ADDITIONAL DISCOVERY

This section responds to Mr. Nussbaum's statements that begin on page 23 of his brief. Respondents incorporate by reference Docket Entry #25, which addresses the four vehicles and container that is the subject of this section. The following are additional comments.

Vin#2288

MTL is listed as the Forwarding Agent as to this shipment of a vehicle that has been abandoned by Complainants. It appears in this transaction, MTL acted as the agent to shipper, DMD Auto. Complainants were from to subpoena any information they wished from the clearly identified ocean carrier or the shipper.

Complainants never paid any storage with respect to this vehicle that has been in storage for over three years. See Respondents' proposed finding of fact #1 and #25-26. MTL continuously asked Complainants to pay for the storage, and now they are seeking copies of AES declarations.

Vin#0283

Complainants never paid any storage in connection with this vehicle either. (Respondent's proposed findings of fact #29-30. They have abandoned this vehicle.

Container# TCNU 2645133

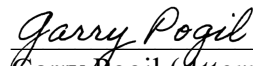
Complainants and Mr. Nussbaum absolutely have an ulterior motive in requesting irrelevant documents when Complainants refused to pick up their vehicles at destination, and Mr. Nussbaum interfered with the agent when he advised Complainants to pick up such. (Respondents proposed findings of fact #46-48, and Respondents' Exhibit #13).

As to the issue of two dock receipts with respect to the subject vehicles in this container. Mr. Nussbaum likes to put forth a baseless statement as to what other NVOCCs would have done, however, it is submitted that no other NVOCC would have simply shipped and released cargo with over \$70,000 in outstanding unpaid charges, but such was done in this case in good faith, which is why there was a second dock receipt, to enable the Complainants to pick up their vehicles, but they refused to pick up such.

To avoid repetition, all of the responses to proposed finding of facts are incorporated in this brief by reference, which specifically refute the Complainants' baseless claims, which fail to establish any unjust or unreasonable practice by MTL, and they fail to establish that any such practice occurred on a normal and continuous basis.

Respectfully submitted,

Dated: September 28, 2021


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